

Appendix ApxDD1

Contents

The appendix contains details screenshots and other evidence (emails, etc) relating to two occurrences of Octopus taking an amount via DD contrary to clear instruction not to do so.

Background

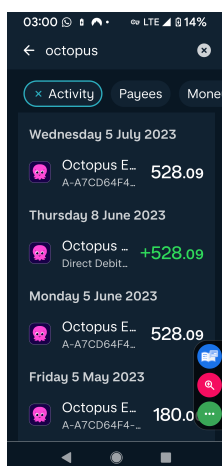
Direct debits, when they work well, are a great convenience to both the customer and the business using them. Minor amendments can be dealt with without over-heavy process - and a reasonable and well understood degree of flexibility can save time for all parties.

However, the direct debit scheme relies on mutual trust. Trust that a supplier will not overstep the mark in pursuit of own commercial interest, that they will always give sufficient notice of any variance - proportionate to amount of variance in question (it will be easy for some customers - at least - to accept a variance of 10 or 20 pounds with a few days notice - perhaps. It is completely unreasonable to expect a consumer to be able to provide hundreds of pounds in additional funds at short, or even long term notice.

By short term I'm thinking of around a week's notice. No less. By long term I'm thinking of around a full calendar months notice.

Each case is of course, unique, however I was surprised - as per the below - that a professional organisation like Octopus did not seem to have my understanding of how these things should work. We live and learn. I have certainly learned, the hard way it seems.

Details - 05-06-23: Withdrawal £528, agreed amount £300



Octopus energy unauthorised withdrawel

As per this image, 528 was taken on the date shown.

Please see the following emails: thread 1: regarding increasing my DD amount: * 19 May - Octopus seek 'authorisation' to increase the DD amount to £528.00. * 20 May - My response. Not at the moment. I explain information I'd need to review this matter correctly. * 22 May - Octopus respond - seemingly telling me they're happy to provide information I requested and going of their way to point out *they have not changed the DD without my consent*

- THEY THEN TOOK THE MONEY CONTRADICTING THEIR OWN RESPONSE!

In their response to me they went out of their way to say that (I quote):

"... However, we would like to clarify that we did not set the direct debit amount without your consent. We suggested a change to your direct debit amount based on your energy consumption to ensure that your payments cover your usage and prevent any debit on your account. We understand that you would like to keep your direct debit amount the same, and we can certainly accommodate that request..."

(which would be a fine sentiment, had they not JUST TAKEN THE INCREASED MONEY IN ANY CASE!)

- nb: I did not point blank refused their request, I did say I'd need access to certain information (my hope in asking them was that it would appear in a structured manner, easy to digest - however sadly I was terribly naive, it would seem, at the time).



Mark Collins-Cope <markcollinscope@gmail.com>

For Mark Collins-Cope: an important update to your payments

3 messages

Octopus Energy <hello@octopus.energy>
To: markcollinscope@gmail.com

19 May 2023 at 22:41

=====
Mark Collins-Cope
Account no. - A-A7CD64F4
=====

Hello Mark,

I hope you're well. I've been reviewing our customers' regular payments to ensure they're set to a sensible level, and noticed your payments need a big change.

Looking at forecast prices (which will start to fall from July) and estimated use, your payments really should be around the £528.09 level which is an unusually large change from what you're currently paying.

I don't want your account falling too far behind, so I'll go ahead and make the change, but please do let me know if this is completely bonkers, or it looks like something's awry with your forecast, or if you're worried you simply can't afford these payments.

It's very straightforward to change your payments to another level before your next payment goes out – you can do so online if you prefer – and if you're struggling with your bills, we can help you get financial support. We've helped thousands of Octopus customers – the most important thing is just to let us know.

Kind regards,
Jon Peters

=====

Your account at a glance:

Your account number: A-A7CD64F4

Your account balance: -£2,255.43

About your balance: <https://octopus.energy/help-and-faqs/categories/bills-and-payments/credit-or-debit-with-you/>

QUICK LINKS:

Change your monthly payment amount: <https://octopus.energy/dashboard/new/accounts/A-A7CD64F4/payment-details/payment-amount/>

Moving house?

<https://octopus.energy/dashboard/accounts/A-A7CD64F4/properties/3508990/move-out/>

SUPPORT DURING THE ENERGY CRISIS:

Find out what support is available this winter from the government and from Octopus.

<https://octopus.energy/blog/energy-crisis-support/>

SMART METER SUPPORT

Simple solutions and tips to make the most of your smart meter:

<https://octopus.energy/ihd-display-screen-help/>

=====

We're here to help - Just reply to this email.

Octopus Energy Limited is a company registered in England and Wales.

Registered number: 09263424.

Registered office: UK House, 5th floor, 164-182 Oxford Street, London, W1D 1NN.

Mark Collins-Cope <markcollinscope@gmail.com>

20 May 2023 at 05:43

Reply-To: markcollinscope@gmail.com

To: Octopus Energy <hello@octopus.energy>

Hi,

SORRY BUT I AM NOT AUTHORISING THIS AT PRESENT.

Any attempt to take that amount of money would be met with a direct-debit recall.

You set the amounts payable - so I'm not extremely unhappy about this.

Unfortunately I am extremely busy at the moment dealing with numerous other issues - as you may have noticed the country doesn't exactly work at present.

Each of these requires around 20-30 spare hours to resolve.

Mortgage companies. Local council. Funeral services... it's never ending.

Reviewing the Octopus situation will no doubt take at least 10 hours as I will have to review **all** previous communications to see how this situation has arisen.

Hence you'll have to bear with me and give me time to get back to you. It's going to be a couple of months I'm afraid.

I will need confirmation in writing (i.e. by post) and printed copies of:

- **all** communications between us - email or other.
- copies of all bills - yours obviously - and including those of your predecessor if you are including anything 'owed' to them.
- legal justification of any amounts you are claiming based on your predecessor - ie. the legal basis on which you are entitled to anything 'owed' to your predecessor. As far as I'm aware they went bankrupt, so ceased to exist, along with their debts and credits.
- full details of how/when you have taken readings from me - and if not the basis on which any estimated bills are made.
- written confirmation of how you create the 'forecast' on which you are basing your figures.

Please confirm (BY EMAIL):

1. That you will NOT attempt any change in direct debits (if I don't receive this confirmation, I'll cancel the DD and pay by standing order).
2. the written information I have requested.

Please reply within 7 days of this email - or I'll be forced to cancel the DD as stated.

Apart from that, I do hope you're well. I appreciate you're just doing your job - and it's nothing personal, so all the best.

Kind regards,
Mark.

To book a meet/call, this is the easiest way: <https://calendly.com/markcollinscope/30min>

Mark Collins-Cope
 Mobile: 0777 163 6882
<https://github.com/markcollinscope>
www.markcollinscope.online
 author: agile development with iconix process (hardback - apress)
 editor: www.objectviewview.online (technical ezine)

[Quoted text hidden]

Octopus Energy <hello@octopus.energy>
 To: markcollinscope@gmail.com

22 May 2023 at 17:56

Hi Mark,

I'm sorry to hear that you're not able to provide a fixed amount for your direct debit at this time. We understand that you have other pressing matters to attend to, and we appreciate your patience with us.

Regarding your request for written confirmation, we can certainly provide you with copies of all communications between us, as well as copies of your bills and any legal justification for amounts owed. We can also provide you with details of how and when we take readings from you, and how we create our balance forecast.

However, we would like to clarify that we did not set the direct debit amount without your consent. We suggested a change to your direct debit amount based on your energy consumption to ensure that your payments cover your usage and prevent any debit on your account. We understand that you would like to keep your direct debit amount the same, and we can certainly accommodate that request.

When you are able to, if you can let me know a fixed amount you can afford a month towards your energy bills, I will change this for you

Please let us know if you have any further concerns or questions. We are always here to help.

Kind regards,
 Adam

Octopus Energy Ltd is a company registered in England and Wales. Registered number: 09263424. Registered office: UK House, 5th Floor, [164-182 Oxford Street, London, United Kingdom, W1D 1NN](#)

On Fri, 19 May 2023 at 21:46, markcollinscope@gmail.com wrote:

Hi,

*SORRY BUT I AM NOT AUTHORISING THIS AT PRESENT.
 Any attempt to take that amount of money would be met with a direct-debit recall.*

You set the amounts payable - so I'm not extremely unhappy about this.

Unfortunately I am extremely busy at the moment dealing with numerous other issues - as you may have noticed the country doesn't exactly work at present.

Each of these requires around 20-30 spare hours to resolve.
 Mortgage companies. Local council. Funeral services... it's never ending.

Reviewing the Octopus situation will no doubt take at least 10 hours as I will have to review *all* previous communications to see how this situation has arisen.

Hence you'll have to bear with me and give me time to get back to you. It's going to be a couple of months I'm afraid.

I will need confirmation in writing (i.e. by post) and printed copies of:

- *all* communications between us - email or other.
- copies of all bills - yours obviously - and including those of your

predecessor if you are including anything 'owed' to them.

- legal justification of any amounts you are claiming based on your

predecessor - ie. the legal basis on which you are entitled to anything 'owed' to your predecessor. As far as I'm aware they went bankrupt, so

ceased to exist, along with their debts and credits.

- full details of how/when you have taken readings from me - and if not the basis on which any estimated bills are made.

- written confirmation of how you create the 'forecast' on which you are basing your figures.

Please confirm (BY EMAIL):

1. That you will NOT attempt any change in direct debits (if I don't receive this confirmation, I'll cancel the DD and pay by standing order).
2. the written information I have requested.

Please reply within 7 days of this email - or I'll be forced to cancel the DD as stated.

Apart from that, I do hope you're well. I appreciate you're just doing your job - and it's nothing personal, so all the best.

Kind regards,
Mark.

To book a meet/call, this is the easiest way:

<https://protect-eu.mimecast.com/s/edEoClv6nCoyKKNITGpAsQ?domain=calendly.com>

Mark Collins-Cope

Mobile: 0777 163 6882

<https://github.com/markcollinscope>

https://protect-eu.mimecast.com/s/ZI3-Cm2Xoi5ZYYNqIOSjJ_?domain=markcollinscope.online

author: agile development with iconix process (hardback - apress)

<https://protect-eu.mimecast.com/s/pqoKCnYJpFGzLLNVuNkroS?domain=amazon.co.uk>

editor: www.objectviewview.online (technical ezine)

https://protect-eu.mimecast.com/s/WOF_CovJqCXMGG3mt6Vlzz?domain=objectiveview.online

[Quoted text hidden]

[Quoted text hidden]

About your balance:

<https://protect-eu.mimecast.com/s/VVJbCpRV0CzGLL3ZFJHd1p?domain=octopus.energy>

QUICK LINKS:

Change your monthly payment amount:

<https://protect-eu.mimecast.com/s/GM58CqV8vfODrrjvurGBjf?domain=octopus.energy>

Moving house?

<https://protect-eu.mimecast.com/s/ZVUUCrE7wSApjlOhGqUjC?domain=octopus.energy>

SUPPORT DURING THE ENERGY CRISIS:

Find out what support is available this winter from the government and from Octopus.

https://protect-eu.mimecast.com/s/d6oVCvYJAFWGggzZT8oL_1?domain=octopus.energy

SMART METER SUPPORT

Simple solutions and tips to make the most of your smart meter:

<https://protect-eu.mimecast.com/s/LC04CwEgBSL7QQ3nTRpNz8?domain=octopus.energy>

=====

We're here to help - Just reply to this email.

Octopus Energy Limited is a company registered in England and Wales.

Registered number: 09263424.

Registered office: UK House, 5th floor, [164-182 Oxford Street, London, W1D 1NN](#).